

Professorship of Corporate Law
Prof. Dr. Stefanie Jung, M.A. (CoE)

Introduction to Business Law

Example Exam II

Summer term 2026



Case Section (70 points in total):

Case – Basic constellation (30 points):

Two students from the TUM School of Management found a start-up, Printtech-oHG (P-oHG). Their business model is based on the sale of 3D printers that are designed to produce particularly detailed models of machines.

Managing director D from the Mach-GmbH (M-GmbH) wants to give the start-up a chance. So M-GmbH (effectively represented by D) buys a 3D printer for 25,000€ from P-oHG (effectively represented by one of its founders).

Example exam 2

3

During a test run immediately after the delivery, it becomes apparent that the printing material, the so-called filament, is heated to a temperature that is much too high. As a result, the filament becomes liquid and spills beyond the printing area onto the table, damaging a laptop nearby. M-GmbH's employees are unable to stop the filament from leaking due to a software problem. After the accident, the table (100€) and laptop (1,200€) are completely destroyed. T complains to P-oHG the same day.

Question 1: Can M-GmbH claim damages for the table and laptop?

Note: Formulate full sentences and write the solution in the style of a legal opinion.

Case – Modification (40 points):

Even though events with M-GmbH have not developed so positively, P-oHG is sticking to its idea.

The very next day, technophile T buys a new hobby version of the 3D printer for 5,000€ (P-oHG is effectively represented by one of its founders). Since P-oHG has learned from its experience with M-GmbH, it uses a "standard 3D printer purchase agreement". This is a three-page document that is intended to set out all the terms and conditions of the legal transaction. Among other provisions of this contract is the following clause:

"1.3: The Customer may not claim damages for any harm caused in connection with a software problem. Regarding these claims, the customer is referred to the software manufacturer."

An employee of P-oHG asks T for his signature. T reads the document and signs it.

Example exam 2

5

But T does not fare any better than M-GmbH. The same software problem occurs again, the filament is heated too much and spreads over the carpet of T's hobby room. Therefore, the carpet requires a cleaning at great expense (costs 200€).

When T complains to P-oHG and demands compensation, he is reminded of the document he signed. P-oHG is of the opinion that T has to turn to the software manufacturer for his concern. T is outraged because he does not know the software manufacturer. Besides, P-oHG is his contractual partner and not this mysterious software manufacturer.

§ 309 BGB

Prohibited clauses without the possibility of evaluation

Even to the extent that a deviation from the statutory provisions is permissible, the following are ineffective in standard business terms:

[...]

8. (Other exclusions of liability for breaches of duty)

[...]

b) (Defects) a provision by which in contracts relating to the supply of newly produced things and relating to the performance of work

aa) (Exclusion and referral to third parties) the claims against the user due to defects in their entirety or in regard to individual parts are excluded, limited to the granting of claims against third parties or made dependent upon prior court action taken against third parties;

Question 2: Can T claim damages from P-oHG for the carpet?

Note: Formulate full sentences and write the solution in the style of a legal opinion.

Theory Question Section (30 points in total):

Examples for questions.
Revision question WON'T be
asked LIKE THIS in the exam!

- **Question 3 (6 points):**

H wants to have his house renovated, but unfortunately he has no practical skills. H therefore calls craftswoman C. A week later, C comes as agreed and replaces two windows in his living room for 800 € in one afternoon. Explain what kind of contract did the parties enter into. Explain what other contract types you considered.

- **Question 4 (6 points):**

Explain the scope of application of culpa in contrahendo (cic).

- **Question 5 (6 points):**

Explain the situation if a person makes an offer and the other side answers by amending this offer.

Example exam 2

8

- **Question 6 (6 points):**

Name the conditions and consequences of this legal provision and explain any particularities.

§ 145 BGB
Binding effect of an offer

Any person who offers to another to enter into a contract is bound by the offer, unless he has excluded being bound by it.

- **Question 7 (6 points):**

Explain the differences between the requirements of rescission and revocation.

Note: Theory questions can be answered in conclusive bullet points and/or short sentences. A legal opinion is not required.